

Rahul Kumar Singh vs Smt. Meenakshi Singh Gaur on 13 May, 2026

Author: Rajan Roy

Bench: Rajan Roy

HIGH COURT OF JUDICATURE AT ALLAHABAD, LUCKNOW BENCH

Reserved on 18.03.2026

Delivered on 13.05.2026

HIGH COURT OF JUDICATURE AT ALLAHABAD

LUCKNOW

FIRST APPEAL No. - 86 of 2025

Rahul Kumar Singh

..Appellant(s)

Versus

Smt. Meenakshi Singh Gaur

..Respondent(s)

Counsel for Appellant(s)

:

Munendra Kumar, Laxmi Narayan Gupta

Counsel for Respondent(s)

:

Satyendra Kumar Tiwari,

Court No. - 1

HON'BLE RAJAN ROY, J.

HON'BLE AMITABH KUMAR RAI, J.

(Delivered by Hon'ble Amitabh Kumar Rai,J.)

1. The instant first appeal has been filed against the judgment and order dated 01.04.2025 passed by the learned IInd Additional Principal Judge, Family Court, Hardoi on an application under Section 24 of the Hindu Marriage Act, 1955, in Matrimonial Case No.1174 of 2022, titled Rahul Kumar Singh vs. Smt. Meenakshi Singh Gaur filed by the appellant/husband under Section 13 of the Hindu Marriage Act, 1955 for dissolution of marriage.
2. Learned counsel for the appellant, while challenging the order dated 01.04.2025 passed on an application under Section 24 of the Hindu Marriage Act, 1955, moved by the respondent/wife for interim maintenance, has submitted that the respondent/wife is employed as a Shiksha Mitra earning Rs.10,000/- per month as honorarium and her financial position is strong as apart from holding the post of Shiksha Mitra, she is also running coaching classes and earns an additional Rs. 50,000/- per month from running a junior high school, which is in the name of her father.
3. It has been further contended that the appellant/husband is working on the post of Lekhpal with a basic salary of Rs.35,350/- per month, which he actually receives in his salary account and not Rs.70,000/- per month as alleged by the respondent/wife in her application moved under Section 24 of the Hindu Marriage Act, 1955. However, the learned Family Court, ignoring all these factors, passed the order dated 01.04.2025 directing the appellant/husband to pay Rs.20,000/- to the respondent/wife towards one-time expenses for conducting the case and Rs.10,000/- per month as interim maintenance.
4. We have learned counsel for the appellant and perused the record.
5. The question which falls for consideration in the instant appeal is whether the grant of interim maintenance of Rs.10,000/- per month and one-time expenses of Rs.20,000/- to the respondent-wife is excessive or sufficient in light of the rival claims raised by the parties before the Family Court during the adjudication of the application filed under Section 24 of the Hindu Marriage Act, 1955.
6. The learned Family Court has taken note of the fact that the appellant/husband could not produce any evidence with regard to the income of the respondent/wife from extra coaching classes and from the junior high school, which is in the name of her father, as alleged by him, and has rejected such claim of income of the respondent/wife. The same cannot be faulted by this Court, as such income can only be considered on the basis of evidence. In the absence of any such evidence, it cannot be presumed that the respondent/wife was earning additional income from those sources.
7. The learned Family Court has taken note of the fact that it is not in dispute that the appellant/husband is working on the post of Lekhpal whereas the respondent/wife is working as a Shiksha Mitra and is suffering from serious ailments, for which she has produced medical documents proving her expenses towards treatment.

8. It is the own version of the appellant/husband that he is getting Rs.35,350/- per month as the basic pay of his salary and, as such, the learned Family Court proceeded to award interim maintenance of Rs.10,000/- per month and one-time litigation expenses of Rs.20,000/-, which, in our view, is justified.

9. The learned Family Court, while deciding the application under Section 24 of the Hindu Marriage Act, 1955, has taken into consideration the reasonableness of the grant of interim maintenance by considering the factors regarding the sufficiency of independent income of either of the parties and the expenses for maintaining oneself. Reasonableness of maintenance means that the wife must be ensured similar comforts and amenities as she was enjoying while residing with her husband, subject to the reduction resulting from the separation and the creation of two different establishments i.e. one for the wife to maintain herself and the other for the husband to maintain himself.

10. Section 24 of the Hindu Marriage Act, 1955 empowers the Court to fix the monthly maintenance and the expenses of the proceedings to be paid during the pendency of the proceedings, having regard to the income of both the applicant and the respondent. The quantum of maintenance is required to be determined depending upon the circumstances and a claim for maintenance cannot be denied on the ground that the financial position of the wife's parents is sound. The test is whether the wife is in a position to maintain herself in the manner she was accustomed to in her matrimonial home and whether she can maintain a standard of living which is neither luxurious nor penurious, but consistent with the status of the family.

11. A careful and just balance must be drawn between all relevant factors. The determination of maintenance in matrimonial disputes depends on the financial status of the respondent and the standard of living to which the applicant was accustomed in her matrimonial home. The sufficiency of the quantum must be adjudged so that the wife is able to maintain herself with reasonable comfort.

12. The Honble Supreme Court, while considering the scope of Section 24 of the Hindu Marriage Act, 1955 in the case of Manish Jain vs. Akanksha Jain reported in (2017) 15 SCC 801, held as follows:

15. Section 24 of the HM Act empowers the court in any proceeding under the Act, if it appears to the court that either the wife or the husband, as the case may be, has no independent income sufficient for her or his support and the necessary expenses of the proceeding, it may, on the application of any one of them order the other party to pay to the petitioner the expenses of the proceeding and monthly maintenance as may seem to be reasonable during the proceeding, having regard to also the income of both the applicant and the respondent. Heading of Section 24 of the Act is Maintenance pendente lite and expenses of proceedings. The section, however, does not use the word maintenance; but the word support can be interpreted to mean as Section 24 is intended to provide for maintenance pendente lite.

16. An order for maintenance pendente lite or for costs of the proceedings is conditional on the circumstance that the wife or husband who makes a claim for the same has no independent income sufficient for her or his support or to meet the necessary expenses of the proceeding. It is no answer to a claim of maintenance that the wife is educated and could support herself. Likewise, the financial position of the wife's parents is also immaterial. The court must take into consideration the status of the parties and the capacity of the spouse to pay maintenance and whether the applicant has any independent income sufficient for her or his support. Maintenance is always dependent upon factual situation; the court should, therefore, mould the claim for maintenance determining the quantum based on various factors brought before the court.

13. Hon'ble Supreme Court in the case of Rajnesh vs. Neha and another reported in (2021) 2 SCC 324 while dealing with the issue of determination of the quantum of maintenance, held in paragraph 57 under the heading "Criteria For Determining Quantum Of Maintenance" that certain guidelines are to be taken into consideration, namely :

- (i) Status of the parties.
- (ii) Reasonable wants of the claimant.
- (iii) The independent income and property of the claimant.
- (iv) The number of persons, the non-applicant has to maintain.
- (v) The amount should aid the applicant to live in a similar lifestyle as he/she enjoyed in the matrimonial home.
- (vi) Non-applicant's liabilities, if any.
- (vii) Provisions for food, clothing, shelter, education, medical attendance and treatment etc. of the applicant.
- (viii) Payment capacity of the non-applicant.
- (ix) Some guess work is not ruled out while estimating the income of the non-applicant when all the sources or correct sources are not disclosed.
- (x) The non-applicant to defray the cost of litigation.
- (xi) The amount awarded under Section 125 of Code of Criminal Procedure is adjustable against the amount awarded under Section 24 of the Act.

Hon'ble Supreme Court has further observed, in paragraph 58 of the said judgment, certain additional factors which may also be relevant for determining the quantum of maintenance payable, namely, the age and employment of the parties, the right to residence, maintenance of minor children, serious disability or ill health and whether the wife is earning some income.

14. The appellant/husband is a government servant working on the post of Lekhpal, and before the learned Family Court, he has not raised any ground regarding expenses to be borne towards other family members dependent on him, such as his father, brother, or sister. The only ground raised by the appellant/husband is that he is receiving a basic salary of Rs.35,350/- per month. However, the learned Family Court has rightly taken into consideration the fact that the respondent/wife is under continuous medical treatment, which she has successfully proved before the learned Family Court, whereas the appellant/husband has referred to monthly deductions of Rs.14,010/- towards installments of a Cash Credit Limit, Rs.5,000/- towards PPF, and Rs.8,000/- towards house rent.

15. The appellant/husband has filed Annexure No.3 to the instant appeal to indicate the loan amount, which reflects a Cash Credit Limit of Rs.9,00,000/- with a drawing power of Rs.8,20,838/-, towards which he has to pay a monthly instalment of Rs.14,010/-. The loan account of the Cash Credit Limit indicates that it relates to some business transaction, however, it is not clear from the document annexed by the appellant/husband as to why such a loan facility was availed by him, and it only indicates that it may be towards some additional source of income. The appellant/husband could not produce any evidence to demonstrate that the respondent/wife has any source of income from coaching classes, apart from the fact that she is employed as a Shiksha Mitra and earns Rs.10,000/- per month. On the other hand, the respondent/wife has sufficiently proved the expenses incurred on account of her ailments on the basis of documents relating to her serious medical illness.

16. Taking into consideration the aforesaid factors as laid down by Hon'ble the Supreme Court in Rajnesh (Supra) and overall facts and circumstances of the present case, we are of the view that the grant of interim maintenance of Rs.10,000/- per month along with one-time litigation expenses of Rs.20,000/-, is not excessive; rather, it is justified and as such, the order dated 01.04.2025 passed by the learned IInd Additional Principal Judge, Family Court, Hardoi on an application under Section 24 of the Hindu Marriage Act, 1955 does not suffer from any infirmity or any illegality.

17. Thus, the instant appeal is dismissed.

18. No order as to costs.

(Amitabh Kumar Rai,J.) (Rajan Roy,J.) 13.05.2026 Mahesh